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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,

Respondents.

Case No. 26CV191136

RESPONDENT CALIFORNIA HIGHWAY PATROL'S REPLY IN SUPPORT OF DEMURRER TO PETITION FOR WRIT OF MANDATE

Date: August 28, 2026
Time: 9:00 a.m.
Dept: 25
Judge: The Honorable Jenna M. Whitman
Trial Date: None Set
Action Filed: May 29, 2026

Reservation Number: 811363998599

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INTRODUCTION

Petitioner's opposition fails to squarely address California Highway Patrol's ("CHP") demurrer arguments. First, Petitioner appears to concede that mandamus cannot lie to compel CHP to issue a Form B certification to him. (*See* Petitioner's Opposition to CHP's Demurrer ("Opp.") at 5-6 ["Mandamus 'does not lie to compel a public agency to exercise discretionary powers in a particular manner, only to compel it to exercise them in some manner'"].) Second, Petitioner continues to attack CHP's written explanation for its Form B certification denial as not "legally adequate" by characterizing it as "no explanation at all," without providing any basis for his demand that CHP provide a written explanation in a form not required by the statute. Third, Petitioner's argument that CHP has misapplied the rebuttable presumption of helpfulness from Penal Code section 679.10 relies on Petitioner's misreading of the statute. Fourth, Petitioner simply fails to engage with Respondent's arguments as to why declaratory relief may not issue.

Fundamentally, Petitioner's arguments arise from a misapplication of the demurrer standard. "[T]he function of a demurrer is not to test the truth or accuracy of the facts alleged in the complaint . . . [the court's] focus is on the *legal* sufficiency of the complaint." (*SJJC Aviation Servs., LLC v. City of San Jose* (2017) 12 Cal.App.5th 1043, 1051-52.) A court does *not* accept as true "contentions, deductions, or conclusions of fact or law" in that pleading. (*Yvanova v. New Century Mortg. Corp.* (2016) 62 Cal.4th 919, 924.) In other words, CHP's demurrer challenges the facial legal defects in the Petition and argues that Petitioner has simply not pled enough to state any cause of action. (*See* Code Civ. Proc., § 430.10.) In doing so, the Petition must be given "a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Petitioner's arguments fail to recognize that while the Court may consider matters that may be judicially noticed, as well as take judicial notice of facts appearing in any exhibits attached to the petition and complaint, the Court may not "assume the truth of 'mere contentions or assertions contradicted by judicially noticeable facts.'" (*SJJC Aviation Servs., LLC v. City of San Jose*, *supra*, 12 Cal.App.5th at p. 1052, citing *Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 20; *Blatty v. New York Times Co. (1986)* 42 Cal.3d 1033, 1040 ["when the allegations of the complaint

contradict or are inconsistent with such facts, we accept the latter and reject the former"]; *Holland v. Morse Diesel Int'l, Inc.* (2001) 86 Cal.App.4th 1443, 1447 ["We may also take notice of exhibits attached to the complaints. If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence."].)

ARGUMENT

I. PETITIONER FAILS TO STATE FACTS SUFFICIENT TO CONSTITUTE ANY CAUSE OF ACTION.

Each of Petitioner's writ causes of action, as well as cause of action for declaratory relief, is subject to dismissal. For each writ of cause of action, Petitioner has failed to allege that Respondent "has a clear, present, and ministerial duty to act in a particular way" or that Petitioner "has a clear, present and beneficial right to performance of that duty." (*County of San Diego v. State of California* (2008) 164 Cal.App.4th 580, 593.) Further, Petitioner is not entitled to his requested declaratory relief because he seeks advisory opinions on purely legal questions and to reverse a past administrative decision.

A. Petitioner Fails to Allege that Respondent Had a Ministerial Duty to Certify Petitioner's Form B.

Although Petitioner previously argued that Respondents failed to perform a mandatory duty by "refus[ing] to certify [his Form B] on the asserted ground that the underlying conduct does not constitute 'qualifying criminal activity,'" Petitioner now attempts to reframe his argument as one that CHP failed to perform its ministerial duty to comply with its "procedural obligations" under Penal Code section 679.10. *See* Opp. at 6. Petitioner argues that "[t]he Petition plausibly alleges that CHP failed to apply the governing standards to the material records before it." (Opp. at 7.)

However, nowhere does Petitioner identify these "governing standards" or "procedural obligations" that purportedly arise from the statute. (*See* Opp. at 6-7.)[1] Rather, Petitioner points

[1] Petitioner instead argues that CHP "ignored the enumerated qualifying offenses the statute incorporates by reference," "failed to address CHP's own detention certificate reflecting that no accusatory pleading was filed," "failed to address CHP's own dashcam recording," and "gave no explanation whether it improperly treated the absence of a charge, investigation, or prosecution as dispositive." (*See* Opp. at 6-7.) But these alleged "governing standards" are nowhere to be found in Section 679.10.

to the Section 679.10's mandate that a certifying entity "process" requests within the statutory deadline, "complete and sign" the Form B presented to it, and "certify victim helpfulness *when the statutory conditions are met*." (Opp. at 5 (emphasis added).) Petitioner does not allege that CHP failed to process his request, conduct an investigation, or complete any necessary paperwork. Instead, Petitioner alleges that CHP rejected Petitioner's basis for seeking a Form B certification. (*See* Opp. at 6-7.) At bottom, Petitioner takes issue with CHP's investigation and finding that the statutory conditions for certifying victim helpfulness were not met, based on its evaluation of the materials presented by Petitioner. In other words, Petitioner objects to CHP exercising its discretion in a *particular manner*, which Petitioner himself admits is beyond the reach of mandamus. (*See* Opp. at 5-6.)

B. Petitioner Fails to Allege that He Has a Clear, Present, and Beneficial Right to a Form B Certification.

Petitioner has not pled sufficient facts to support his bare legal conclusion that he was the victim of "false imprisonment, unlawful criminal restraint, felonious assault, obstruction of justice, [and] perjury." (*See* Pet., ¶ 82.) In his Opposition, Petitioner insists that he has alleged enough, pointing to "fourteen exhibits, including the denial letter itself (Ex. 1), Petitioner's eight-page legal analysis identifying four contradictions by dashcam timestamp (Ex. 3), the verbatim dashcam transcript[2] (Ex. 5), the CHP arrest report containing the disputed statements (Ex. 6), and the section 851.6 detention certificate (Ex. 7)." (Opp. at 4.) While Petitioner is correct that the Court should consider these exhibits as part of his pleading (*see Holland v. Morse Diesel Int'l, Inc.*, *supra*, 86 Cal.App.4th at p. 1447), Petitioner is wrong that his contentions, inferences, and legal conclusions drawn from these exhibits should be taken as true. (*See Yvanova v. New Century Mortg. Corp.*, 62 Cal.4th at p. 924 [courts do *not* accept as true "contentions, deductions, or conclusions of fact or law in that pleading"].)

Petitioner incorrectly presumes that Respondent asks this Court to "weigh competing inferences." (Opp. at 5.) Not so. Rather, Respondent asks this Court to evaluate the face of the

[2] Notably, this transcript was prepared by Petitioner himself after he viewed the dashcam recording. (*See* Pet., Ex. 5 at 15.)

Petition and find that Petitioner has simply not alleged enough *facts* to support his *legal conclusion* that he was the victim of numerous crimes. Indeed, where Petitioner does allege relevant facts, those do not support his conclusion. For example, Petitioner himself alleges (and supports with an exhibit) that a CHP officer provided a sworn statement that he "could smell the distinct odor of an alcohol beverage emitting from within the vehicle" and "from Newanforbi's breath and person." (*See* Pet., ¶ 44; *id.*, Ex. 6 at 4.) Petitioner then insists that the Court must infer from the absence of any remark regarding alcoholic odor in the dashcam transcript (that Petitioner prepared) that the CHP officer was lying. But the Court is not obligated to take Petitioner's inference as true. In fact, Petitioner *himself* alleges that a CHP officer observed an empty can of alcohol in his vehicle. (*See* Pet., ¶ 47 ["[a]n empty Mike's Hard Lemonade can was observed"]; *see id.*, Ex. 5, at 4 [identifying the Mike's Hard Lemonade as "source alcohol"].)

Petitioner argues that this Court should be persuaded by a federal court order screening his 42 U.S.C. section 1983 complaint and granting him status to proceed *in forma pauperis*. (*See* Opp. at 5, citing *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, Dkt. No. 1 (Jun. 17, 2026).) However, that complaint is not before this Court, and so any order screening that complaint should not be considered during this Court's evaluation of the Petition.

C. Petitioner Fails to Allege that Respondent Did Not Provide a Written Explanation for the Form B Certification Denial.

Petitioner insists that Respondent did not comply with Section 679.10, subdivision (i)(2)'s requirement that a certifying entity provide a written explanation for denying Form B certification. (Opp. at 7-9.) However, Petitioner's insistence relies upon his invention of a legal standard that does not exist. Section 679.10, subdivision (i)(2) provides, in full:

> If a certifying entity does not certify a Form I-918 Supplement B certification, they shall provide a written explanation for the denial of the Form I-918 Supplement B certification. The written denial shall include specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate.

Respondent does not dispute that Section 679.10, subdivision (i)(2) requires a written explanation from a certifying entity that denies a Form B certification. That is, Respondent agrees that "any denial must be accompanied by a written explanation." *See* Opp. at 8. As shown

by Petitioner's Exhibit 1, Respondent did, in fact, provide a written explanation for its Form B certification denial. (*See* Pet., Ex. 1.) CHP did not, as Petitioner asserts, "merely restate[] the ultimate conclusion." (*See* Opp. at 9.) Rather, CHP wrote to Petitioner:

> A thorough review of this incident was conducted. Unfortunately, this incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC) . . . Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC.

(Pet., Ex. 1.)

That is precisely the explanation that Petitioner now states is "legally adequate." (*See* Opp. at 9.) Petitioner argues that to be legally adequate, a written explanation must "disclose whether CHP rejected the request because it found no qualifying criminal activity, no substantially similar activity, insufficient victim status, lack of helpfulness, or other legally permissible basis." (*See id.*) CHP did just that, disclosing to Petitioner that it had rejected his request because it found no qualifying criminal activity or substantially similar activity.

To the extent Petitioner relies on the Attorney General's Information Bulletin No. 2024-DLE-05 (*see* Pet., Ex. 14), Petitioner reads the FAQ answer out of context. That guidance provided: "There is a rebuttable presumption that a victim is helpful, has been helpful, or is likely to be helpful, if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement. ***To comply with the rebuttable presumption of helpfulness in the VTVPA, the reason for denial of certification should be clearly articulated and specific (i.e., non-cooperative because of three unreturned phone calls on dates X, Y, and Z)***." (Pet., Ex. 14 at 5 (emphasis added).) In other words, the bulletin recommended specificity in situations where the applicant's helpfulness was at issue. In this instance, Respondent's helpfulness was not at issue, because CHP had already found no qualifying criminal activity or substantially similar activity.

D. Petitioner Fails to Allege that Respondent Had a Ministerial Duty to Apply the Rebuttal Presumption of Helpfulness on the Facts Alleged.

Contrary to Petitioner's assertions, Respondent's demurrer does not "flip[] the presumption of helpfulness on its head" or render the presumption "meaningless." (*See* Opp. at 9-10.) Rather, it is Petitioner who contorts the statute beyond its intended purpose.

As an initial matter, Petitioner's reading of Section 679.10, where "agencies could defeat the presumption simply by never asking for help," relies on his assumption that the statute was designed to address situations where the certifying agency is also accused of subjecting the applicant to a crime, or at the very least is in an adversarial opposition to the applicant. As laid out in Respondent's demurrer, Section 679.10 was enacted to impose procedural requirements on law enforcement agencies processing Form B certification requests (some of which had declined altogether to issue such certifications), not necessarily to broaden the scope of the U Visa statute.[3]

It is Petitioner who reads out critical language from Section 679.10 by insisting that CHP was required to apply the rebuttable presumption of helpfulness to him because he did not refuse or fail to cooperate. *See* Opp. at 10. The statute provides: "[T]here is a rebuttable presumption that a victim is helpful, has been helpful, or is likely to be helpful, if the victim has not refused or failed to provide information and assistance ***reasonably requested*** by law enforcement." (Pen. Code, § 679.10, subd. (h) (emphasis added).) Petitioner ignores the requirement that information and assistance be first reasonably requested by law enforcement.

Petitioner's reading would allow almost every immigrant to be presumed helpful to a criminal investigation and eligible for a Form B certification by virtue of "not refusing or failing to provide information," regardless of whether any information or assistance was actually solicited by law enforcement. More specifically, Petitioner's reading would also allow every immigrant who lodged a complaint against a law enforcement agency to be presumed helpful simply by virtue of "affirmative provision of information," as Petitioner alleges. *See* Opp. at 10.

[3] As set forth in Respondent's Demurrer, one of the primary objectives of the U Visa, which was created as part of the reauthorization of the Violence Against Women Act, was to remove obstacles that could hinder battered immigrants from fleeing domestic violence safely and prosecuting their abusers. (*See* MPA in support of CHP's Demurrer at 7.)

E. Petitioner Fails to Explain Why He is Entitled to Declaratory Relief.

Petitioner fails to substantively engage with Respondent's arguments that declaratory relief is not appropriate to review a past administrative decision. (*See* MPA in support of CHP's Demurrer at 19.) Instead, Petitioner insists that an actual controversy exists, because he asks the Court to declare whether CHP's denial letter satisfied the Penal Code. (Opp. at 10.) However, as Respondent explained, "[d]eclaratory relief operates prospectively to declare future rights, rather than to redress past wrongs." (*County of San Diego v. State of California*, *supra*, 164 Cal.App.4th at p. 607.) Petitioner does not deny that CHP issued him a denial letter on April 20, 2026, over three months ago.

Further, Petitioner's attempt to distinguish *Griset v. Fair Political Practices Commission* (2001) 25 Cal. 4th 688, 697-700, misinterprets Respondent's argument regarding mootness. (*See* MPA in support of CHP's Demurrer at 19-20.) To be clear, Respondent argument was that, if the Court determined as a legal matter, that "there is no ministerial duty compelling CHP to provide a written denial in the form demanded by Petitioner," the declaration sought by Petitioner (that CHP's denial letter does not satisfy Section 679.10) becomes moot. (*See id.* at 20.) Petitioner's general statements regarding whether a declaratory cause of action is subject to demurrer are not adequately responsive.

II. PETITIONER CANNOT CURE THE DEFECTS IN HIS PETITION THROUGH AMENDMENT.

Petitioner bears the burden of showing amendment is not futile. He cannot meet this burden. As an initial matter, Petitioner's suggested amendments, which indicate Petitioner would "identify more specifically the factual basis of each alleged qualifying or substantially similar criminal activity" and "plead with greater specificity the materials submitted to CHP" lack any *factual* details about what those amendments would involve and are plainly insufficient. (*Nelson v. Tucker Ellis, LLP* (2020) 48 Cal.App.5th 827, 849 [leave to amend futile where plaintiff had "not identified any additional facts" to overcome legal barriers]; *see also Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 ["the onus is on the *plaintiff* to articulate the 'specifi[c] ways' to cure the identified defect."] [citation omitted].)

More fundamentally, amendment would be futile because no additional facts alleged could alter the Petition's facial deficiencies: CHP maintained discretion to issue him a denial (and so had no ministerial duty to issue him a Form B certification); CHP provided Petitioner with a written explanation for this denial; and the reasonable presumption of helpfulness was not applicable given that CHP (or any other law enforcement agency) did not request any information or assistance from Petitioner. Accordingly, leave to amend should be denied.

CONCLUSION

The Court should sustain CHP's demurrer without leave to amend.

Dated: August 21, 2026

Respectfully submitted,

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DECLARATION OF SERVICE BY E-MAIL and U.S. MAIL

Case Name: ***Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al.***
Case No.: **26CV191136**

I declare:

I am employed in the Office of the Attorney General, which is the office of a member of the California State Bar, at which member's direction this service is made. I am 18 years of age or older and not a party to this matter. My business address is: 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004. My electronic service address is Melissa.Mendiola@doj.ca.gov. I am familiar with the business practice at the Office of the Attorney General for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at the Office of the Attorney General is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

On August 21, 2026, I served the attached:

- **RESPONDENT CALIFORNIA HIGHWAY PATROL'S REPLY IN SUPPORT OF DEMURRER TO PETITION FOR WRIT OF MANDATE**

by transmitting a true copy via electronic mail. In addition, I placed a true copy thereof enclosed in a sealed envelope, in the internal mail system of the Office of the Attorney General, addressed as follows:

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
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Petitioner, In Pro Per

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on August 21, 2026, at San Francisco, California.

M. Mendiola
Declarant

M. Mendiola
Signature

SA2026303341